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The human right to adequate housing

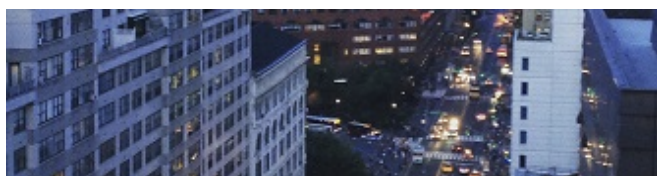
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About the right to adequate housing

Housing is the basis of stability and security for an individual or family. The centre of our social, emotional and sometimes economic lives, a home should be a sanctuary—a place to live in peace, security and dignity.

Housing is a right, not a commodity





Increasingly viewed as a commodity, housing is most importantly a human right. Under international law, to be *adequately* housed means having **secure tenure**—not having to worry about being **evicted** or having your home or lands taken away. It means living somewhere that is in keeping with your culture, and having access to appropriate services, schools, and employment.

Too often violations of the right to housing occur with **impunity**. In part, this is because, at the domestic level, housing is rarely treated as a human right. The key to ensuring adequate housing is the implementation of this human right through appropriate government policy and programmes, including **national housing strategies**.

Evictions and displacement

Climate change, natural disasters and armed conflict pose a threat to the enjoyment of the right to adequate housing and displace every year millions. Infrastructure development, hydro-power dams, and **mega-events**, such as Olympic Games or football World Cups, should contribute to the realization of the right to adequate housing and not undermine it.

Housing and real estate markets worldwide have been transformed by global capital markets and financial excess. Known as the financialization of housing, the phenomenon occurs when housing is treated as a commodity – a vehicle for wealth and investment rather than a social good.

Equality and non-discrimination

While revenues from real estate have accumulated, our cities have become increasingly unaffordable. In many countries **women**, religious and ethnic minorities, **indigenous peoples, persons with disabilities, migrants and refugees** face discrimination in relation to housing or live in the most appalling conditions. Spatial segregation excludes many residents from equal access to public services, education, transportation and other opportunities.

Local Governments are often at the forefront of the struggle for housing and can play a key role in protecting and realizing the right to adequate housing.

Homelessness and informal settlements

More than 1.8 billion people live in **informal settlements** or inadequate housing with limited access to essential services such as water and sanitation, electricity and are often under threat of forced eviction. And one of the most severe violations of the right to adequate housing—**homelessness**—has been on a steep increase in many economically advanced countries.

Building back better

The **COVID-19 pandemic** has underscored the need for everyone to have a safe home to shelter. The economic crisis that followed will see many people unable to pay their rent or mortgage. National, regional and local governments need to prevent a new disastrous wave of evictions and urgently address discriminatory patterns of social exclusion in the enjoyment of the right to adequate housing. Only together we can ensure that nobody will be left behind.

The right to adequate housing in human rights law

Adequate housing was recognized as part of the right to an adequate standard of living in article 25 of the 1948 **Universal Declaration of Human Rights** and in article 11.1 of the 1966 **International Covenant on Economic, Social and Cultural Rights**. Other international human rights treaties have since recognized or referred to the right to adequate housing or some elements of it, such as the protection of one's home and privacy.

The right to adequate housing is relevant to all States, as they have all ratified at least one international treaty referring to adequate housing and committed themselves to protecting the right to adequate housing through international

declarations, plans of action or conference outcome documents. Various international treaties and declarations referring to the right to adequate housing are available at the following [link](#).

The United Nations [Committee on Economic, Social and Cultural Rights](#) has underlined that the right to adequate housing should not be interpreted narrowly. Rather, it should be seen as the right to live somewhere in security, peace and dignity. The characteristics of the right to adequate housing are clarified mainly in the Committee's general comments [No. 4 \(1991\) on the right to adequate housing](#) and [No. 7 \(1997\) on forced evictions](#).

The right to adequate housing contains freedoms.

These freedoms include:

- Protection against [forced evictions](#) and the arbitrary destruction and demolition of one's home;
- The right to be free from arbitrary interference with one's home, privacy and family; and
- The right to choose one's residence, to determine where to live and to freedom of movement.

The right to adequate housing contains entitlements.

These entitlements include:

- [Security of tenure](#);
- Housing, land and property restitution;
- Equal and non-discriminatory access to adequate housing; and
- Participation in housing-related decision-making at the national and community levels.

Key elements of the right to adequate housing

Adequate housing must provide more than four walls and a roof. A number of conditions must be met before particular forms of shelter can be considered to constitute “adequate housing.” These elements are just as fundamental as the basic supply and availability of housing. For housing to be adequate, it must, at a minimum, meet the following criteria:

- **Security of tenure:** Housing is not adequate if its occupants do not have a degree of tenure security which guarantees legal protection against forced evictions, harassment and other threats.
- **Availability of services, materials, facilities and infrastructure:** Housing is not adequate if its occupants do not have safe drinking water, adequate sanitation, energy for cooking, heating, lighting, food storage or refuse disposal.
- **Affordability:** Housing is not adequate if its cost threatens or compromises the occupants’ enjoyment of other human rights.
- **Habitability:** Housing is not adequate if it does not guarantee physical safety or provide adequate space, as well as protection against the cold, damp, heat, rain, wind, other threats to health and structural hazards.
- **Accessibility:** Housing is not adequate if the specific needs of disadvantaged and marginalized groups are not taken into account.
- **Location:** Housing is not adequate if it is cut off from employment opportunities, health-care services, schools, childcare centres and other social facilities, or if located in polluted or dangerous areas.
- **Cultural adequacy:** Housing is not adequate if it does not respect and take into account the expression of cultural identity.

Publication



OHCHR Fact Sheet on the right to adequate housing

This publication available in all six UN languages provides a more detailed introduction to the right to adequate housing in international human rights law.

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